

24CHCV00833 24CHCV00833

County: los-angeles

Division: Civil Law and Motion

Department: F51

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Case Number: 24CHCV00833 Hearing Date: July 9, 2026 Dept: F51

LOS

ANGELES SUPERIOR COURT

NORTH

VALLEY DISTRICT

DEPARTMENT

F-51

JULY 8, 2026

MOTIONS TO COMPEL FURTHER

DISCOVERY RESPONSES

(Special

Interrogatories, and Requests for Production of Documents, Set Two)

Los Angeles Superior Court

Case # 24CHCV00833

Motion

filed: 4/27/26

MOVING

PARTY: Defendant/Cross-Complainant

Luisita Caberto Dela Rosa, Trustee of the Luisita Caberto Dela Rosa 2004

Revocable Trust dated August 2, 2024 ("Defendant")

RESPONDING

PARTY: Plaintiff

Eldeodora Gregorio Cruz ("Plaintiff")

NOTICE: OK

RELIEF

REQUESTED: Orders

compelling Plaintiff's further responses to the following discovery requests:

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Defendant's

Special Interrogatories, Set Two, Nos. 75–80; and

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Defendant's

Requests for Production of Documents ("RFPs"), Set Two, Nos. 32–37.

TENTATIVE

RULING: The

motions are continued. The parties' counsel are ordered to meet and further confer either telephonically or in-person within 60 days, to resolve and/or narrow all outstanding discovery issues. Defendant's counsel is to file a declaration with the Court which confirms compliance with this order, or explains why no meaningful meet and confer occurred.

BACKGROUND

This is a fraud action in which Plaintiff alleges that pending divorce proceedings from her ex-husband, defaulted defendant/cross-defendant Pedro Cabral Cruz, Cruz purchased a property located at 20517 Martingale Place, Santa Clarita, CA 91350, taking title to the subject property as "a married man" on 1/19/21. (FAC ¶¶ 7–8.) In 2023, Cruz attempted to sell the subject property, and requested that Plaintiff sign an Interspousal Transfer Grant Deed, which Plaintiff refused. (Id. at ¶ 9.) Plaintiff alleges that Cruz proceeded to forge Plaintiff's signature on the Interspousal Transfer Grant Deed, and sold the subject property to Defendant. (Id. at ¶¶ 10–11.)

On 3/13/24, Plaintiff filed her original complaint, alleging against three named Defendants the following causes of action: (1) Fraud; (2)

Breach of Fiduciary Duty; (3) Unjust Enrichment; (4) Negligence; (5) Cancellation of Deed; (6) Cancellation of Deed; and (7) Quiet Title. On 6/10/24, Defendant filed her answer and cross-complaint, alleging against her two co-defendants a sole cause of action for Equitable Indemnity. On 2/4/26, Plaintiff amended her complaint to name Provident Title Company as previously unnamed Doe defendant 1. On 6/16/26, Plaintiff filed her first amended complaint ("FAC"), alleging the same seven causes of action.

On 2/10/26, Defendant served her second set of discovery requests on Plaintiff. (Decl. of Michaelle Lee ¶ 2.) On 3/9/26, Plaintiff served her responses thereto. (Id. at ¶ 3.)

On 4/27/26, Defendant filed the instant motions to compel further responses to the subject discovery requests. On 6/25/26, Plaintiff filed her oppositions. On 7/1/26, Defendant filed her replies.

ANALYSIS

"The party to whom interrogatories have been propounded shall respond in writing under oath separately to each interrogatory by any of the following: (1) An answer containing the information sought to be discovered; (2) An exercise of the party's option to produce writings; or (3) An objection to the particular interrogatory." (Code Civ Proc. § 2030.210, subd. (a).) "Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits." (Code Civ Proc. § 2030.220.) "If an objection is made to an interrogatory or to a part of an interrogatory, the specific ground for the objection shall be set forth clearly in the response." (Code Civ Proc. § 2030.240, subd. (b).)

A propounding party may move for an order compelling further responses to interrogatories if any of the following apply: "(1) An answer to a particular interrogatory is evasive or incomplete; (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate; or (3) An objection to an interrogatory is without merit or too general." (Code Civ. Proc. § 2030.300, subd. (a).) Discovery is relevant if it is admissible as evidence, or "appears reasonably calculated to lead to the discovery of admissible evidence." (Code Civ. Proc. § 2017.010.) "Discovery may relate to the claim or defense of the party seeking discovery or of any other party to

the action.” (Ibid.)

California law requires a responding party to respond to each request for production of documents with either a statement of compliance, a representation that the party lacks the ability to comply, or an objection to the demand. (Code Civ. Proc. § 2031.210, subd. (a).) If the response includes an objection to the demand in part, it must also include a statement of compliance or noncompliance as set forth above. (Code Civ. Proc. § 2031.240, subd. (a).) Additionally, the response must (1) identify the particular document that falls within the category of the request to which the objection is being made, and (2) expressly set forth the extent of, and specific ground for, the objection. (Id. at subd. (b).) A propounding party may move for an order compelling further response to a discovery request if it decides that “an objection in the response is without merit or too general.” (Code Civ. Proc. § 2031.310, subd. (a).)

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A. Meet and Confer

A motion to compel further discovery responses must be accompanied by a meet and confer declaration stating “facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc. §§ 2030.300, subd. (b)(1); 2031.310, subd. (b)(2); 2016.040.)

Here, Defendant’s counsel declares that beginning on 4/20/26, she emailed Plaintiff’s counsel attempting to meet and confer letter regarding the issues raised in the instant motions. (Lee Decl. ¶¶ 4–5.) On 4/30/26, counsel for the parties met and conferred telephonically, and on 5/15/26, Plaintiff served supplemental responses to the subject discovery requests. (Decl. of Ma. Rita S. Vesagas ¶¶ 7–9.) On 6/23/26, counsel for the parties met and conferred telephonically regarding Plaintiff’s supplemental responses, including Defendant’s request “that Plaintiff provide: (1) Bates-stamped copies of the documents produced; (2) verified supplemental responses identifying which Bates-numbered documents are

responsive to each Request for Production; and (3) clarification confirming that no responsive documents were being withheld on privilege grounds.” (Suppl. Lee Decl. ¶¶ 2–7.) As of the date of Defendant’s reply, Plaintiff has not complied with Defendant’s request.

Based on the foregoing, the Court orders counsel for the parties to meet and further confer either telephonically or in-person within 60 days, to resolve and/or narrow all outstanding discovery issues. Defendant’s counsel is to file a declaration with the Court which confirms compliance with this order or explains why no meaningful meet and confer occurred. The motions are therefore continued pending further meet and confer.

CONCLUSION

The unopposed motions are continued 10/13/2026. The parties’ counsel are ordered to meet and further confer either telephonically or in-person within 60 days, to resolve and/or narrow all outstanding discovery issues. Defendant’s counsel is to file a declaration with the Court which confirms compliance with this order, or explains why no meaningful meet and confer occurred.